IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH BENCH

COURT No.1

(*through hybrid mode*)

ITEM No. 6

CP (CAA) No.16/Chd/Hry/2023
(2nd Motion)

IN THE MATTER OF:-

Star Wire (India) Electricity Pvt. Ltd & Ors. ...Transferor Companies

And

Star Wire (India) Laboratories Pvt. Ltd …Transferee Company

Under Section: 230-232, CA 2013

Order delivered on 23.08.2024

CORAM:

SH. UMESH KUMAR SHUKLA
MEMBER (TECHNICAL)

SH. HARNAM SINGH THAKUR
MEMBER (JUDICIAL)

PRESENT:

For the petitioner	:	Mr. Rajeev K. Goyal, Advocate
For the Income Tax Department	:	Mr. Yogesh Putney, Senior Standing Counsel
For the RD	:	Mr. Vineet Khatri, Company Prosecutor
For the OL	:	Mr. Arnav Gupta, Advocate
For the RBI	:	Mr. K. V. Singhal, Advocate

ORDER

It is stated by ld. counsel for the OL that after receiving the reply of the petitioner-companies, OL has no objections to the scheme. Similarly, it is stated by Mr. Vineet Khatri, Company Prosecutor representing RD that after going through the reply of the petitioner-companies, RD is satisfied with the observations. It is stated by Mr. K. V. Singhal, Advocate for the RBI, after perusal of the scheme, Bank has no objection to the scheme.

Ld. counsel appearing on behalf of the petitioner-companies is directed to submit an affidavit to the effect that the core investment companies are not required

to be registered with the RBI in view of the specific exemption granted by the RBI. He is directed to file a copy of the said regulation along with affidavit within two days.

Heard. ***Order reserved***.

Sd/-
(UMESH KUMAR SHUKLA)
MEMBER (TECHNICAL)

Sd/-
(HARNAM SINGH THAKUR)
MEMBER (JUDICIAL)

Tanvi